



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

September 12, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 13959
(SEVENTH REVISION)

EXPIRATION DATE: 2026-07-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Koch Fertilizer, LLC
Wichita, KS
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the loading incidental to movement or unloading incidental to movement of anhydrous ammonia without a containment area at the Koch Nitrogen Company facilities listed in this special permit. This special permit only applies to loading or unloading operations meeting the definition of “loading incidental to movement” or “unloading incidental to movement” as defined in § 171.8 of the Hazardous Materials Regulations (HMR). This special permit provides no relief from the HMR other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 177.834(i)(3)(ii)(F) in that a containment area must be provided capable of holding the contents of as many cargo tank motor vehicles as might be loaded at any single time, except as specified herein.
5. BASIS: This special permit is based on the application of Koch Nitrogen Company dated August 19, 2022 and submitted in accordance with § 107.109.

Tracking Number: 2022085248

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Ammonia, anhydrous	2.2	UN1005	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: The authorized packaging is a DOT specification cargo tank motor vehicle authorized for the transportation of anhydrous ammonia.

b. OPERATIONAL CONTROLS:

(1) Each cargo tank must be loaded by a qualified person who is familiar with the product and with the proper procedures for its safe handling.

(2) The provisions of § 177.834(i) must be complied with except that paragraph (3)(ii)(F) is waived for anhydrous ammonia.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be displayed at each facility where this special permit is used.

b. The plant Operator must visually inspect each cargo tank motor vehicle after it is loaded, prior to departure.

c. Written procedures for training of the plant Operators, for their adherence to standard operating procedures, and for inspection and maintenance of video equipment and of the shut-off valve/remote control system must be carried out as described in the original application for this special permit, on file with the Office of Hazardous Materials Safety (OHMS).

d. This special permit applies only to loading incidental to movement or unloading incidental to movement at the plant facilities of Koch Nitrogen Company at the following locations:

Address	City	State	Zip
6107 Ortho Way Rd.	Fort Madison	IA	52627
2415 Vail Ave	Garner	IA	50438
3046 Garwin Rd.	Marshalltown	IA	50158
2735 Port Neal Circle P.O. Box 490	Sgt. Bluff	IA	51054
2156 Fir Ave.	Keota	IA	52248
1559 City Rd 1400N P.O. Box 194	Henry	IL	61537
3892 Berm HWY	East Alton	IL	62024
5051 East Co. Rd 000N	Mattoon	IL	61938
4904 N US Highway 231	Crawfordsville	IN	47933
502 E Hosler Rd.	Huntington	IN	46750
7438 E CR 800 South	Walton	IN	46994
925 60 th Street SE P.O. Box 7	Murdock	MN	56721
1101 West HWY 34	Aurora	NE	68818
14000 FM 1267 P.O. Box 230	Farnsworth	TX	79033

This special permit may be used at other Koch Nitrogen Company plant locations upon written application to OHMSAPD and receipt of written notification from OHMS that such locations have been added to the list of plants authorized under this special permit.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae